

Animal, farm groups say NC law halts probes

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An animal welfare group says it found abuses at a Kinston poultry plant in the months preceding a new law that now deters the exposure of farm and other workplace conditions.

People for the Ethical Treatment of Animals contends the abuses occurred at the Sanderson Farms poultry plant. The organization says it planted an employee there during the three months last year leading up to the law going into effect on Jan. 1.

The company says it investigated after learning of the allegations from PETA in February, but found no evidence that any abuses had occurred.

The [Property Protection Act](#) allows employers to sue anyone who intentionally gets hired in order to publicize unsafe or inhumane conditions, or to steal data, documents or other material. Employers can sue for up to \$5,000 a day in damages.

“That thwarts us from being able to do this kind of work,” Laura Cascada, an evidence analyst with PETA, said Thursday. “It covers up the kind of abuse we’ve found throughout the country.”

Veto overridden

Gov. Pat McCrory vetoed the bill last year, saying it didn’t protect legitimate whistleblowers and that it contradicted another new law, which required workers to report abuse of mentally ill and disabled patients. The General Assembly overrode the veto, despite opposition from the AARP, labor and wounded veterans. The N.C. Chamber backed the bill for its protections for employers against hiring people with ulterior motives.

Before passing the bill, the legislature had twice unsuccessfully attempted to crack down on private undercover investigations at farms through legislation that animal welfare organizations call “ag-gag” laws. Last year, the General Assembly broadened its effort to include any employee of any business, in a way to get around the ag-gag label.

PETA and seven other advocacy groups sued the state in federal court, challenging the constitutionality of the new law for violating free speech, petition, equal protection, and due process rights. The lawsuit named as defendants Attorney General Roy Cooper and UNC-Chapel Hill chancellor Carol Folt, because PETA wants to send undercover investigators back to the university’s animal testing laboratory as it did 13 years ago.

Most of the plaintiff organizations say they undertake undercover investigations in North Carolina that they want to continue. One of them, the Animal Legal Defense Fund, has a list of farms, research facilities and puppy mills where it wants its investigators to secure employment, according to court filings in the case.

On Friday, Cooper’s office filed a brief in U.S. District Court in Greensboro asking the lawsuit be dismissed. The state argues that neither Cooper nor Folt should have been named as defendants, since they have no authority to enforce the law, among other reasons.

The state doesn’t have the authority to pursue civil damages on behalf of private companies, the state’s attorneys note. If someone infiltrates a business and is sued by the company under this law, that person would then be free to challenge the constitutionality of the law, the state reasons.

The state also contends that the plaintiffs haven’t alleged facts to show they have a First Amendment right in what case law has defined as a “nonpublic forum,” or that the nonpublic areas of a business are actually considered public forums for the purposes of free speech.

The Anti-Sunshine Law

The organizations that sued refer to it as the “Anti-Sunshine Law,” and contend it is aimed at

discouraging whistleblowers, reporters and activists from sharing their investigations with the public. The attorney general disagrees, saying the law doesn't restrict free speech.

"The statute does not single out animal rights activists, the media or any other entity," the attorney general's brief says. "It does not define civil liability based on viewpoint."

PETA says its investigations have led to significant animal protection laws and policy changes around the country. One investigator was hired at a research lab's kennels near Raleigh in 2010 and documented dogs and cats being tested with insecticides and other chemicals for major drug manufacturers, according to its lawsuit.

Last year, a federal judge in Idaho struck down an ag-gag law, saying it criminalized whistleblowing and violated free speech protections. In May, the judge ordered that state to pay animal advocacy groups who had sued \$250,000 in legal fees.

PETA representatives say they are encouraged by those rulings and hope they spark successful challenges in other states where they have sued.

The PETA investigation of Sanderson Farms was conducted right up to the time that it would have been against the law to continue, according to Cascada. What the group found illustrates abuses that are still going on but would not become public if the law stands, she said.

PETA contends that one of its observers videotaped conditions inside the Kinston plant, and that she also saw workers routinely leaving unwanted and late-hatching chicks in baskets overnight, which PETA contends violates national animal welfare standards. Surviving chicks were thrown out or put into a high-speed grinder, the group says.

"This is the first look we've gotten into chicks' first moments of life, which are often their last moments of life, which we found at Sanderson Farms," Cascada said.

Mike Cockrell, the chief financial officer and treasurer for Sanderson Farms, said the company looked into the allegations but couldn't confirm them. He said the firm has more stringent animal welfare rules than the national guidelines, which allow the use of maceration grinding, which he said brought instantaneous and painless death.

"We take this very seriously," Cockrell said.

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